

## HEADNOTE

*“An exception to the principle that an appeal has no suspensive effect may apply, for instance, if the enforcement of the order pending the appeal would render the appeal largely ineffective.”*

## COURT

Court of Appeal Luxembourg

## PATENT

## KEYWORDS

Suspensive effect

revocation of order to preserve evidence a...

restitution of evidence

## PROCEEDINGS

Procedural order

## SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. According to the headnotes of the decision, an exception to the general rule that appeals do not suspend the enforcement of orders may arise when carrying out the order would effectively prevent the appeal from serving any meaningful purpose.